

Hyderabad Metropolitan Development Authority and Executive Committee (Conduct of Meetings) Rules, 2008

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Rule

HYDERABAD-METROPOLITAN-DEVELOPMENT-AUTHORITY-AND-EXECUTIVE-COMMITTEE-CONDUCT-OF-MEETINGS-RULES-2008 of 2008

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Hyderabad Metropolitan Development Authority and Executive Committee (Conduct of Meetings) Rules, 2008

Published vide Notification No. G.O.Ms.No. 778, Municipal Administration and Urban Development (II), dated 20.11.2008

Last Updated 29th August, 2019

G.O.Ms.No. 778. - In exercise of the powers conferred by sub-section (1) of Section 56 of the Hyderabad Metropolitan Development Authority Act, 2008, the Government of Andhra Pradesh hereby makes the following rules, for summoning and holding of meetings of the Metropolitan Development Authority and the Executive committee.

1.

Short title.

- These rules may be called the Hyderabad Metropolitan Development Authority and Executive Committee (Conduct of Meetings) Rules, 2008.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

a. "Act" means the Hyderabad Metropolitan Development Authority Act, 2008.

b. "Authority" means the Hyderabad Metropolitan Development Authority constituted under sub-section (1) of Section 4, of the Act.

c. "Committee" means the Executive committee constituted under subsection (1) of Section 5 of the Act.

d. "Meetings" means the meeting conducted by the Hyderabad Metropolitan Development Authority, and the Executive Committee.

e. "words" and 'expressions' used but not defined in these rules shall have the respective meanings assigned to them in the Act.

3.

Conducting the meetings by the Hyderabad Metropolitan Development Authority.

- 1. The Authority shall meet for transaction of the business at least once in every three months at such date and such place as may, from time to time be fixed and communicated by the Metropolitan Commissioner with the prior approval of the Chairman.

2. The meetings of the Authority shall be held at the headquarters of the Authority, or any such other place covered under the jurisdiction of the Hyderabad Metropolitan Development Authority.

3. No meeting shall be held unless specific notice of the day and time when the meeting is to be held and of the business to be transacted after giving seven clear days before the day of the meeting.

4.

In case of Urgency, extraordinary meetings of the Authority may be convened by giving short notice.

5.

The Metropolitan Commissioner shall prepare the agenda for the meeting and obtain approval of the chairman for the agenda so prepared as ensure that the same is circulated to the Chairman and other members in advance.

6.

In case the Government do not find it possible to nominate all the members of the Authority specified under subsection (3) of Section 4 of the Act, or any delay caused for filling the casual vacancies which may arise, the Authority may transact the business provided at least ten members of the Authority present in the meeting.

7.

Any Casual vacancy arisen in the authority shall be filled either by nomination or appointment by the Government which shall be filled as soon as possible or within four months from the date of falling of such vacancy. Any person so appointed shall hold office for the residue of the term of the member in whose place he or she is so appointed or nominated.

8.

Every member of the Authority is expected to attend every meeting unless there are valid reasons for the same. If any member absent continuously for more than three meetings without prior permission, he or she ceases to be member of the authority:

Provided that the Authority may restore the membership by suitable resolution to be recorded in writing in this regard.

9.

In case within half an hour after the time appointed for a meeting there is no sufficient quorum, (minimum one-third of the members) the Chairman or the presiding Officer shall adjourn the meeting to such date and time as may be fixed. The business which could not be conducted for want of quorum shall be considered at the next meeting and dispose off the business at the meeting so fixed or at any subsequent adjourned meetings irrespective of the presence of quorum.

10.

The chairperson presiding at a meeting shall invite or initiate discussion on each item included in the agenda for the meeting in such order or priority as he thinks fit and shall guide the discussion to a fruitful conclusion with a view to

enabling the members to arrive at a decision based on the consensus of the members present and if there be no consensus among the members present, the matter shall be decided by the majority of votes, the person presiding shall have a second or casting vote in the case of equality of votes.

11.

No resolution of the authority shall be modified or cancelled within three months after the passing thereof except at a meeting specially convened in that behalf and by a resolution supported by not less than one half of the number of members then present.

12.

The minutes of the authority meetings shall be drawn up and recorded in the Minutes Book provided for this purpose and shall be attested by the Metropolitan Commissioner.

13.

The secretary shall have the custody of the proceedings and records of the authority and may grant copies of any such proceedings and records on payment of such fees as the authority may by general order or special order determine.

14.

A copy of the minutes of the proceedings at such meeting in English and the main language of the Metropolitan area shall be forwarded by the Secretary of the authority to the Government. An authenticated copy of the said minutes shall also be affixed to the notice board of the office of the authority.

15.

The authority shall consider and decide the following matters namely:

(i)

all matters required to be considered by the Authority under any provisions of the Act and the rules and regulations made there under or under any other law for the time being in force or under any direction of the State Government.

(ii)

any matter required to be considered by the Authority under service regulation or other regulations or subsidiary regulations, where powers are not delegated; and

(iii)

any other matter specially required by the Chairman to be placed before the authority in view of its importance:

Provided that items for which Specific delegations have been given the members or officers of the authority, while discharging duties, shall not be included in the agenda unless the members concerned if any so desires.

4. Conducting of the meetings of the Executive Committee.

- 1. The Executive Committee shall meet for transaction of the business at least once in a month.

2. The meetings of the Executive Committee shall be presided by the Metropolitan Commissioner, who shall be the Chairman.

3. The agenda for the Executive Committee shall be prepared by the Secretary, Hyderabad Metropolitan Development Authority who shall obtain the approval of the Metropolitan Commissioner in advance and ensure that the agenda is circulated before seven clear days of the day fixed for the meeting of the Executive Committee.

4. In case of urgency, extraordinary meetings of the Executive Committee maybe convened by giving short notice.

5. The procedure and conduct of the business of the Hyderabad Metropolitan Development Authority meetings shall apply mutatis-mutandis to the meetings of the Executive Committee.

6. The Executive Committee shall consider and decide on the matters:-(i) pertaining to the management and administration of the affairs of the Metropolitan Development Authority.

(ii)

undertake preparation or area level plans and action plans and give directions to the officers and staff in this regard.

(iii)

advise the Metropolitan-Commissioner in the effective administration of the Act and smooth functioning of the Authority.

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